

		Consequently, the Motion to Seal is DENIED.
56	Quick Bridge Funding, LLC vs. Quick Claims Adjusting LLC 26-01539598	Motion to Set Aside/Vacate Default and Judgment NO TENTATIVE RULING - Parties to appear on Zoom or in-person.
57	The San Juan Company LLC vs. Hjorth-Olsen 24-01429184	Motion for Judgment on the Pleadings Defendant Ole Hjorth-Olsen (“Defendant”) moves for judgment on the pleadings as to the First Amended Complaint (“FAC”) filed by The San Juan Company, LLC and DMB San Juan Investment North, LLC (collectively, “Plaintiffs”). The motion is DENIED for the reasons set forth below. Defendant’s request for judicial notice of Plaintiff’s FAC is GRANTED. (Evid. Code § 452, subd. (d).) Meet and Confer Moving counsel represents that the parties met and conferred by written correspondence regarding the issues raised in the motion but were unable to resolve them. (Gessin Decl., ¶¶ 2-4, Exs. A-B.) Code of Civil Procedure section 439, however, requires the parties to meet and confer in person, by telephone, or by video conference. The parties’ written correspondence did not satisfy that requirement. The Court notes the deficiency but considers the motion on its merits. First Cause of Action for Breach of Guaranty The elements of a cause of action for breach of contract are “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) The elements of a cause of action for breach of guaranty are (1) a valid guaranty; (2) principal obligor’s default; (3) and failure of the guarantor to perform under the guaranty. (See <i>Gray/CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486). A guarantor is one who promises to answer for the debt or perform the obligation of another when the person ultimately liable fails to pay or perform. (Civ. Code, § 2787; <i>Gramercy Investment Trust v. Lakemont Homes Nevada, Inc.</i> (2011) 198 Cal.App.4th 903, 911.) <u>The FAC alleges, in pertinent part, as follows:</u> In April 1990, Plaintiffs’ predecessors entered into a written License Agreement with Olsen Pavingstone, Inc. (“Olsen”). (FAC, ¶ 9 & Ex. A.) The license